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KING COUNTY  
SUPERIOR COURT CLERK  
SEATTLE, WA

Superior Court of Washington  
County of King

In re the Custody of:

TIMOTHY E. BENNETT, II

Child,

MELVINA ROBERSON,

Petitioner,

and

ZACHARIAH J. BENNETT and KELLY J.  
BENNETT,

Respondents.

No. 08-3-03956-4 SEA

DECLARATION OF KELLY J.  
BENNETT IN SUPPORT OF  
TEMPORARY CUSTODY  
(MTAF)

SEE ATTACHED.

DECLARATION OF KELLY J. BENNETT IN SUPPORT  
OF TEMPORARY CUSTODY

ORIGINAL

O. W. HOLLOWELL & ASSOCIATES  
4471 Tolt Ave. P. O. Box 1041  
Carnation, Washington 98014  
Phone: 425-333-4848 FAX: 425-333-4884

I Kelly Bennett do hereby swear under penalty & perjury under the laws that govern the state of Washington that the following are true:

I Kelly Bennett have been the victim of Domestic Violence, and Abuse at the hands of Zack Bennett ( my husband) for over two years now. I was not abused by Zack while pregnant with Timothy Bennett (my son) in any way.

I came to Washington State on the the May 10<sup>th</sup> 2008 mainly to see my son Tim, but also to get away from Zack. I was told by Zack that if I did not return with Tim back to Colorado that there would be no Kelly Bennett for anyone to see, (Death Threat).

Zack's abuse has slowly gotten worse as time has gone on. It started mainly with yelling, then moved in to pushing, kicking, punching, throwing me against walls, floors, beds, and restraining me with duct tape. There has been several times that Zack has threatened to kill me or people close to me if I didn't do as he asked.

On or about the Date of September 13<sup>th</sup> of 2007 there was a all day event of yelling, hitting, choking, and more threats. I ran to the Neighbors house for protection. At that point I called Zack's mom in Washington State to have <sup>her</sup> him talk to Zack to calm him down but that did not work either. He threatend to come bust through the neighbors door but never did. Zack's mom advised me to get in my car and leave the situation but Zack pulled all of the spark plug wires to not let me leave. In the end the fight defused itself after time.

On or about the date of October 10<sup>th</sup> 2007 Zack hit me in the left eye with a closed fist splitting my eye open bad enough for me to have to go to the hospital and get stitches. There was as best as I can remember no real reason for him to hit me. To this day can't even say why Zack hit me. I went to the hospital got stitches. What I told the attending nurse was that Tim was crying , that Zack and I came running out of the kitchen and collided our heads together. I did not tell them that Zack hit me.

On behalf of my Son Tim. My husband Zack has been yelling at Tim since he was a infant. Whenever Tim would cry Zack would yell at him telling him to "shut the fuck up, why are you fucking crying, you just got fed". It was also not below Zack to use two fingers to smack the baby on the mouth to get him to stop crying. I tried everything in my power to keep Zack from yelling or hitting Tim but nothing seemed to work. I have also gone as far as to take Tim away so that Zack couldn't yell at him anymore, but then the abuse quickly turned to me. Zack has choked me, hit me, and then grabbed Tim out of my arms, put Tim down and then come back after me for protecting him.

The reason that I am here in Washington State is that I fear for the safety of my son, and myself. I as a mother realize that I need help, not only with the abuse of myself and my son but also from a drug addiction that both Zack and I suffer from. Both Zack and I have been addicted to Meth for some time now. I started using in June of 2007 and it has been a ongoing fight to quit the drug. I have been clean of Meth since I left Colorado in May of 2008 and came to Washington.

I would like at this point to allow the courts in order to protect my son and myself from any further abuse grant **Temporary Custody** of my son Tim to Melvina Roberson. The reason that I'm doing this is that I realize that I need help and that I am not at this time stable enough to provide for the well being of my son Tim. Zack continues to use Meth and is also unable to provide for his son Tim in a caring loving manor. I Kelly Bennett feel that it is in Tims best interest to reside with Melvina Roberson until I Kelly Bennett can properly care for the child Tim Bennett.

Kelly f Bennett

5-19-2008